Number 29 *of* 1952

MERCHANT SHIPPING (SAFETY CONVENTION) ACT 1952

REVISED

Updated to 20 May 2021

This Revised Act is an administrative consolidation of the *Merchant Shipping (Safety Convention) Act 1952*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including the *Children (Amendment) Act 2021* (6/2021), enacted 26 April 2021, and all statutory instruments up to and including the *Consumer Protection Act 2007 (Competition and Consumer Protection Commission) Levy Regulations 2021* (S.I. No. 257 of 2021), made 20 May 2021, were considered in the preparation of this Revised Act.

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MERCHANT SHIPPING (SAFETY CONVENTION) ACT 1952

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AN ACT TO ENABLE EFFECT TO BE GIVEN TO AN INTERNATIONAL CONVENTION FOR THE SAFETY OF LIFE AT SEA, SIGNED IN LONDON ON THE 10TH DAY OF JUNE, 1948; TO AMEND THE PROVISIONS OF THE MERCHANT SHIPPING ACTS, 1894 TO 1947, RELATING TO THE CONSTRUCTION OF PASSENGER STEAMERS, TO LIFE-SAVING APPLIANCES, WIRELESS AND RADIO NAVIGATIONAL AIDS AND TO OTHER MATTERS AFFECTED BY THE SAID CONVENTION; AND TO MAKE PROVISION FOR THE CHARGING OF FEES. [17*th December*, 1952.]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:—

PART I.

Preliminary and General.

Short title and collective citation.

1. — (1) This Act may be cited as the Merchant Shipping (Safety Convention) Act, 1952.

(2) The Merchant Shipping Acts, 1894 to 1947, and this Act may be cited together as the Merchant Shipping Acts, 1894 to 1952.

Commencement.

2. — This Act shall come into operation on such day as the Government shall by order appoint.

Interpretation and construction accepted Safety Convention certificate.

3. — (1) In this Act—

" accepted Safety Convention certificate " has the meaning assigned to it by section 28 of this Act;

" the Act of 1933 " means the Merchant Shipping (Safety and Load Line Conventions) Act, 1933 (No. 42 of 1933);

" collision regulations " means regulations made under Section 418 of the Principal Act;

" construction rules " means rules made under section 10 of this Act;

" country to which the Safety Convention applies " means—

Repeals.

8. — The enactments mentioned in the First Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

Transitional provisions.

9. — The provisions of the Second Schedule to this Act shall have effect for the purpose of the transition from the law in force before the commencement of this Act to the provisions of this Act.

PART II.

Safety of Life at Sea.

Construction and Equipment.

Construction rules.

F6**[10.** — (1) The Minister may make rules (' construction rules') prescribing the—

(a) requirements that the hull, superstructure, subdivision and stability, electrical installations, equipment and machinery of and fuel used in passenger steamers registered in the State, or other passenger steamers while in the territorial seas or elsewhere in the State, must comply with, and

(b) requiring such steamers to be surveyed to such extent and in such manner and at such intervals, as may be prescribed.

(2) In making construction rules the Minister may categorise passenger steamers into different classes, where appropriate, having regard to one or more of the following:

(a) the size, shape, speed or configuration of such steamers;

(b) the service for which such steamers are to be employed;

(c) the nature and duration of voyages to be undertaken;

(d) the number of passengers or other persons, or both, that such steamers are designed to carry on board;

(e) such other matter or matters that the Minister considers appropriate to take into account in the circumstances;

(f) the type of cargo carried, including dangerous goods;

(g) the age and date of construction of steamers.

(3) Different construction rules may be made in respect of different classes of passenger steamers and in relation to different classes of passenger steamers for different circumstances and for different areas of operation.

(4) Construction rules shall include such requirements as appear to the Minister to be necessary to implement the provisions of the Safety Convention prescribing the requirements that the hull, superstructure, subdivision and stability, electrical installations, equipment and machinery of and fuel used in passenger steamers must comply with, except so far as those provisions are implemented by rules for life-saving appliances, radio rules, navigation and tracking rules, collision regulations or fire protection rules.

(5) Construction rules may require the provision in ships to which this section applies—

(a) of plans exhibited as provided by or under the rules, and of other information, relating to the boundaries of watertight compartments, the openings in them,